

TEAMTHRIVE TERMS OF SERVICE

Effective Date: [Effective Date] | Last Updated: [Date]

1. Acceptance of These Terms

These Terms of Service ("Terms") form a binding agreement between you and TeamThrive ("TeamThrive," "we," "our," or "us"), a product operated by [TeamThrive Legal Entity Name], a [entity type] organized under the laws of [State/Country], with its principal place of business at [Address]. They govern your access to and use of the TeamThrive mobile applications, the TeamThrive website at teamthrive.com, and all related features, content, and services (collectively, the "Platform"). By downloading, installing, accessing, registering for, or using the Platform, you agree to these Terms, our Privacy Policy, our Acceptable Use and Community Safety Policy, and our Disclaimer, each of which is incorporated by reference. If you do not agree, do not use the Platform.

If you accept these Terms on behalf of a minor athlete (as a parent or legal guardian), on behalf of a sports club, team, or organization, or on behalf of any other entity, you represent that you have the authority to bind that person or entity to these Terms.

2. Who May Use the Platform; Account Categories

The Platform is intended for use by sports clubs and organizations, coaches and team staff, parents and legal guardians, and youth athletes, in connection with roster management, scheduling, athlete profiles, communications, and athlete development and recruitment features.

Athlete access policy. Only athletes who are thirteen (13) years of age or older may directly access the Platform, and then only with verifiable parental or legal guardian consent. An athlete who is at least thirteen (13) and has obtained such consent may directly access only that athlete's own profile and schedule, and such other features as we expressly make available to athlete accounts. Athletes may not access, manage, or view information belonging to other athletes except as expressly enabled by the Platform.

Athletes under thirteen (13). Athletes under the age of thirteen (13) may not create, access, or directly use the Platform. A profile relating to an athlete under thirteen (13) may exist on the Platform only where it is created, managed, and controlled by that athlete's parent or legal guardian (or by a club or coach acting with documented parental consent), and only subject to the Parental Consent Agreement and our Privacy Policy.

Parental and guardian responsibility. Accounts relating to any minor athlete must be created and administered by a parent or legal guardian. The parent or legal guardian is solely responsible for creating the account, for providing and uploading the athlete's information, photographs, and other content, for supervising the athlete's use of the Platform, and for all activity that occurs under the account. By creating or administering such an account, you represent that you are the athlete's parent or legal guardian with authority to act on the athlete's behalf.

Adults (including coaches, club administrators, and parents) must be at least eighteen (18) years of age, or the age of majority in their jurisdiction if higher, to create an adult account.

3. Accounts, Registration, and Security

You agree to provide accurate, current, and complete information during registration and to keep it updated. You are responsible for safeguarding your login credentials and for all activity under your account. You agree to notify us promptly at [security@teamthrive.com] of any unauthorized use or suspected breach. We are not liable for losses arising from unauthorized use of your account where you have failed to maintain the confidentiality of your credentials.

4. Roles of Clubs, Coaches, and Organizations

Where a club, team, or organization uses the Platform to manage rosters, schedules, or athlete information, that club or organization is responsible for its own use of the Platform, for obtaining any consents required from athletes and their parents or guardians, and for complying with applicable law and the rules of any governing sports body. TeamThrive does not control, supervise, employ, endorse, or vet clubs, coaches, organizations, or recruiters, and is not responsible for their acts or omissions. Nothing in these Terms creates an agency, partnership, employment, or joint venture relationship between you and TeamThrive.

5. Athlete Profiles, Content, and Your License to Us

The Platform allows account holders to create athlete profiles and to upload information, statistics, photographs, video, and other materials ("User Content"). You retain ownership of your User Content. You grant TeamThrive a worldwide, non-exclusive, royalty-free, sublicensable license to host, store, reproduce, adapt, display, and transmit User Content solely as necessary to operate, provide, secure, and improve the Platform and to deliver the features you request, including, where you have separately enabled it, recruitment visibility features. This license ends when User Content is deleted, except for residual backup copies retained for a limited period and content others have lawfully reshared within the Platform.

You represent and warrant that you have all rights and consents necessary to upload your User Content and to grant the license above, including, for any photograph or video depicting a minor, the consent of that minor's parent or legal guardian as set out in our Parental Consent Agreement.

6. Recruitment and Development Features; No Guarantee

The Platform may offer features intended to help athletes present their profiles to coaches, scouts, college programs, or recruiters. These features are tools only. TeamThrive does not act as an athletic agent, recruiter, advisor, or representative of any athlete, and does not guarantee that any athlete will be discovered, recruited, offered a roster spot, scholarship, or any other opportunity. Recruitment visibility for a minor athlete is off by default and may be enabled only with verifiable parental or guardian consent. Nothing on the Platform constitutes advice regarding eligibility rules of any league, association, or governing body, including amateurism, recruiting, or name, image, and likeness rules; you are responsible for understanding and complying with those rules.

7. Acceptable Use

Your use of the Platform is subject to our Acceptable Use and Community Safety Policy, which prohibits, among other things, abusive, harassing, exploitative, or unlawful conduct, and which sets out our zero-tolerance approach to any content or conduct that endangers a child. Violation may result in suspension or termination and reporting to appropriate authorities.

8. Fees

The Platform is currently offered free to download. Certain features may be offered for a fee or by subscription. Any applicable pricing, billing, renewal, and cancellation terms will be presented to you at the point of purchase and, where purchased through the Apple App Store or Google Play, are also subject to the applicable app store terms. [Confirm and complete fee terms, or state that the Platform is free of charge.]

9. Intellectual Property

The Platform, including its software, design, text, graphics, and the TeamThrive name and logos, is owned by TeamThrive or its licensors and is protected by intellectual property laws. Subject to these Terms, we grant you a limited, revocable, non-exclusive, non-transferable license to use the Platform for its intended purpose. You may not copy, modify, distribute, reverse engineer, scrape, or create derivative works from the Platform except as permitted by law.

10. Third-Party Services and App Stores

The Platform may link to or integrate with third-party services, including the Apple App Store and Google Play. We are not responsible for third-party services. Your download and use of the mobile application is also subject to the terms of the applicable app store. Where required by Apple, you acknowledge that these Terms are between you and TeamThrive, not Apple, and that Apple is a third-party beneficiary entitled to enforce these Terms.

11. Disclaimers

The Platform is provided on an "as is" and "as available" basis. To the fullest extent permitted by applicable law, TeamThrive disclaims all warranties, express or implied, including warranties of merchantability, fitness for a particular purpose, and non-infringement, and does not warrant that the Platform will be uninterrupted, error-free, secure, or accurate. Additional disclaimers, including disclaimers relating to sporting activities, supervision, schedules, recruitment outcomes, and medical matters, are set out in our Disclaimer. Nothing in these Terms excludes or limits any right or remedy that cannot lawfully be excluded or limited, including rights you may have as a consumer under the law of your country of residence.

12. Limitation of Liability

To the fullest extent permitted by applicable law, TeamThrive and its officers, directors, employees, and agents will not be liable for any indirect, incidental, special, consequential, exemplary, or punitive damages, or for any loss of data, profits, goodwill, or opportunity, arising out of or relating to your use of the Platform. To the fullest extent permitted by applicable law, our total aggregate liability arising out of or relating to the Platform will not exceed the greater of the amounts you paid to us in the twelve (12) months before the event giving rise to the claim or one hundred United States dollars (USD 100).

Some jurisdictions do not allow certain exclusions or limitations of liability. Where you are a consumer in the European Economic Area, the United Kingdom, or another jurisdiction with mandatory consumer protections, the limitations above apply only to the extent permitted by that law, and we remain liable for losses caused by our negligence, willful misconduct, death or personal injury caused by our negligence, fraud, and any other liability that cannot lawfully be limited.

13. Indemnification

To the extent permitted by applicable law, you agree to indemnify and hold harmless TeamThrive from claims, damages, and reasonable expenses (including reasonable legal fees) arising out of your User

Content, your violation of these Terms, or your violation of any law or third-party right. This Section does not apply to the extent a loss results from our own negligence or willful misconduct, and does not apply to consumers except to the extent permitted by applicable consumer law.

14. Suspension and Termination

We may suspend or terminate your access to the Platform if you violate these Terms, if necessary to protect the Platform or its users (in particular to protect a minor), or as required by law. You may stop using the Platform and delete your account at any time. Sections that by their nature should survive termination will survive, including Sections 5, 9, 11, 12, 13, 15, and 16.

15. Governing Law and Dispute Resolution

These Terms are governed by the laws of [State/Country], without regard to conflict-of-laws principles, except that this choice of law does not deprive a consumer of the protection of the mandatory laws of the consumer's country of residence. [Insert agreed dispute resolution mechanism: courts of [venue], or arbitration provisions. If arbitration or a class-action waiver is used, confirm enforceability in each target market and provide any required opt-out and consumer carve-outs.] Consumers in the European Economic Area may also use the European Commission Online Dispute Resolution platform.

16. Changes to These Terms

We may update these Terms from time to time. If we make material changes, we will provide reasonable notice, such as by posting the updated Terms with a new effective date or notifying you in the Platform. Your continued use after the changes take effect constitutes acceptance, except where additional consent is required by law.

17. Contact

Questions about these Terms may be sent to [legal@teamthrive.com] or [TeamThrive Legal Entity Name, Address].